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25-CLJ-03993 JASEN FRANK MEYN VS. MGA INSURANCE COMPANY, INC (*Complaint Filed: 05/28/25*)
LINE 5

JASEN FRANK MEYN
MGA INSURANCE COMPANY, INC

PRO PER

PLAINTIFF: JASEN MEYN'S MOTION TO CONSOLIDATE ACTIONS (with 25CIV06981 - *Complaint Filed: 09/22/25*)

TENTATIVE RULING:

Plaintiff Jasen Frank Meyn's Motion to Consolidate Actions is DENIED without prejudice.

Plaintiff seeks to consolidate this limited civil matter (25CLJ03993), which is assigned to Department 11 with unlimited civil matter 25CIV06981, which is assigned to Department 4. Plaintiff indicates that the unlimited civil matter should be the dominant case.

But Plaintiff has not complied with California Rule of Court 3.350 in any manner, including but not limited to, failing to comply with subsection (a)(1)(C), which requires that the motion be filed in each case sought to be consolidated. The same rules apply to Plaintiff despite his pro per status. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984–85 (“[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”).

Despite the two cases being more than one year old (in one case) and almost a year old (in the other case), Plaintiff has not yet successfully served them. Plaintiff has obligations to diligently prosecute his cases that he is not yet meeting.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare the Order.

02:00 PM

26-CIV-00570 ELIZABETH BULJAN VS. ERIC YUAN, ET AL.

LINE 6

ELIZABETH BULJAN
ERIC YUAN

BLAIR KITTLE
RACHEL K. IVANOWSKY

DEFENDANT: DANIEL CHUNG, STEPHEN PAHI, CATHERINE ROBERTSON AND SPENCER FANE LLP'S MOTION TO STRIKE (SLAPP)

TENTATIVE RULING:

Defendants Daniel Chung, Stephen Pahl, Catherine Schlomann Robertson, and Spencer Fane LLP have filed a Special Motion to Strike ("anti-SLAPP motion") Plaintiff Elizabeth Buljan's Complaint for Malicious Prosecution.

Defendants' Special Motion to Strike Plaintiff's Complaint is DENIED.

Background

According to Plaintiff's Complaint, Defendants Eric Yuan and Sherry Yuan sued Ms. Buljan in 2023, through their alleged alter-ego, Defendant MarigoldYZP I LLC ("Marigold" and, collectively with the Yuans, "Marigold Defendants"), for over \$37,000,000.00 in an alleged breach-of-contract case, despite full knowledge that Ms. Buljan had never met the Yuans, Ms. Buljan had signed no contracts with the Yuans or related entities, and Ms. Buljan had nothing to do with the underlying facts alleged in their lawsuit. Knowing that Ms. Buljan was completely uninvolved in the underlying dispute, Eric and Sherry Yuan, through their lawyers and an LLC "MARIGOLDYZP I," maliciously prosecuted their lawsuit against Ms. Buljan for over two years, and stopped only when the court granted summary judgment for Ms. Buljan and entered judgment on January 8, 2026. (Complaint, ¶ 1)

The Complaint alleges that the Yuans prosecuted their lawsuit, allegedly a breach of contract case regarding an Atherton mega-mansion and future family home for the Yuans, against Ms. Buljan despite the Yuans' and their attorneys' knowledge that Ms. Buljan was not involved in any way with the real estate contract at issue in their case, but sued her purely because she was and is married to Pierre Buljan, who they alleged was involved. (*Id.*, ¶ 2.) In their respective depositions, both Eric Yuan and Sherry Yuan admitted that they had never met or communicated with Ms. Buljan and that the Yuans had never seen Ms. Buljan's name on any document pertaining to their property transaction. (*Id.*, ¶ 3.)

The Complaint alleges that despite knowing Ms. Buljan had nothing to do with their case prior to filing their lawsuit, and despite receiving confirmation in litigation from every other party that she was not involved, the Yuans continued to sue her for over \$37 million, forced her to endure hours of deposition, threatened her with harassing and ridiculous litigation demands including demanding access to her smart television, car back up cameras, and the nanny cameras in her children's rooms, and forced her to incur gargantuan sums in legal fees to defend against their malicious actions. (*Id.*, ¶ 4.)

The Complaint alleges that even though they knew such discovery would not produce any relevant information— because, again, both of the Yuans knew that Ms. Buljan was not involved in the
